

SUPREME COURT OF PAKISTAN
(Appellate Jurisdiction)

Present:

Mr. Justice Shahid Bilal Hassan
Mr. Justice Shakeel Ahmad

Civil Petitions No. 3232/2023, 3287/2023 & 5138/2025

(Against the judgments/ orders dated 13.06.2023, 09.05.2023, and 20.10.2025, passed by the Lahore High Court, Multan Bench, Multan in RA No. 14-C/2023, CR No. 442-D/2002 and Review application No. 19-C/2023, respectively)

Muhammad Shafique Khan and another ...Petitioner(s)
(in C.Ps.3232 & 3287/2023)

Mudrassa Taleem ul Quran, Branch Jamia
Khair ul Madaris thr. Noman Waheed (duly
authorized person), Multan *(in C.P 5138/2025)*

Versus

Madrisa Taleem-ul-Quran Khairul Madaris,
Multan and others *(in C.Ps.3232 & 3287/2023)*

Muhammad Shafique Khan and another ...Respondent(s)
(in C.P.5138/2025)

For the Petitioner(s) : Mr. Muhammad Ali Siddiqui, ASC
alongwith Syed Rifaqat Hussain Shah,
AOR *(in CPs No. 3287/2023 & 3232/2023)*

Ch. Muhammad Masood Jahangir,
ASC *(in CP No. 5138 of 2025)*

For Respondent(s) : Ch. Muhammad Masood Jahangir,
ASC *(in CPs No. 3287/2023 & 3232/2023)*

Mr. Muhammad Ali Siddiqui, ASC
alongwith Syed Rifaqat Hussain Shah,
AOR *(in CP No. 5138 of 2025)*

Date of Hearing : 15.01.2026

ORDER

SHAKEEL AHMAD, J.

Civil Petitions No. 3287 of 2023 & 5138 of 2025:

Leave to appeal is sought against the judgments/ orders dated 09.05.2023 and 20.10.2025, passed by the Lahore High Court, Multan Bench, Multan ("***the High Court***"), whereby the Civil Revision petition instituted by Muhammad Shafique Khan & others ("***the petitioners/plaintiffs***") and Review Application by the Madrassa Taleem ul Quran, were dismissed.

2. Having considered the arguments from both sides, we are of the view that the following question requires determination:

Whether the High Court, while dismissing the revision application arising from an inter se dispute between private parties and in the absence of the Government as a party, could suo motu declare the property as Escheat and direct the taking of possession by the Government, notwithstanding that Escheat was neither pleaded, nor framed as an issue, nor supported by any evidence.

3. It is an admitted fact that petitioners/plaintiffs instituted a civil suit against Madrassa Taleem ul Quran & others ("**the respondents/ defendants**"), claiming therein that the suit house was jointly owned by Mst. Bismillah Begum and her mother, Mst. Hakeeman. Upon the death of Mst. Bismillah Begum on 16.06.1996, her share was claimed to have devolved upon the petitioners/plaintiffs, who pleaded that they were the only surviving legal heirs of Mst. Hakeeman. They further alleged that the respondents/defendants, namely Abdul Waheed, Muhammad Umar, and Ayub Khan, acting in connivance with one another, had prepared a forged *waqf* deed purportedly executed by Mst. Bismillah Begum. It was pleaded that her thumb impression was obtained on the said *waqf* deed at a time when she was unconscious and not in a fit condition to execute any such document. Upon appearance before the Court, respondent/defendant No.1 filed a contesting written statement, whereas respondent No.2 filed a conceding written statement. In view of the divergent pleadings of the parties, the trial Court framed the relevant issues. After full consideration, the suit was dismissed by the trial Court and such dismissal was concurrently upheld by the appellate Court and the revisional Court.

4. Both the learned counsel for the parties mainly contended that, while adjudicating the *lis* between two private parties, the High Court acted beyond its jurisdiction by declaring the suit property to be Escheat and directed the Government to take possession thereof. It was argued that such a course was impermissible as Escheat was neither pleaded nor framed as an issue, and the Government was not a party to the proceedings. According to learned counsel, these observations are in clear violation

of the settled principles of procedural law and are, therefore, factually and legally unsustainable and void.

5. The record demonstrates that the controversy throughout remained confined to a dispute over ownership of the suit property between two private parties. The petitioners/plaintiffs asserted title on the basis of inheritance as legal heirs of Mst. Hakeeman, whereas respondent/defendant No.1 set up a competing claim founded on a *waqf* deed allegedly executed by the deceased Mst. Bismillah Begum. Both the trial Court and the appellate Court concurrently held that neither party was able to establish its respective title or claim, with the result that the suit stood dismissed up to the stage of the High Court. However, while dismissing the Revision Petition filed by the petitioners/plaintiffs as well as Review Application No.19-C of 2023 filed by the respondent/defendant, the High Court, relying upon certain entries in the revenue record, showing the property in the name of the Provincial Government proceeded to treat the suit property as Escheat and further directed the Government to take its possession. Escheat is a distinct and special legal concept. Property can vest in the State only where the owner dies intestate, and no legal heir exists to inherit the estate, and such foundational facts are established through proper and independent proceedings. A declaration of Escheat cannot be made incidentally or collaterally in a civil suit, particularly when it was neither pleaded nor put in issue between the parties.

6. It is an admitted fact that the Government was not a party to the *lis*. No pleadings were raised, no issues framed, and no evidence was led on the question of Escheat. It is by now well settled that Courts are bound by the pleadings of the parties and cannot grant relief or record findings on matters neither pleaded nor put in issue. The entire *lis* remained confined to a contest of title between two private parties, one claiming ownership by inheritance and the other on the basis of an alleged *waqf* deed. Escheat was never set up as a case by any party. No issue was framed in this regard, nor was evidence adduced to establish the foundational facts necessary for such a declaration. In proceeding to declare the suit property as Escheat, the High Court travelled beyond the pleadings and effectively introduced a third and entirely alien case, which is impermissible under the settled principles of law. The mere reflection

of the Government's name in the revenue record could not, by itself, justify a declaration of Escheat. In our view, the High Court clearly exceeded its jurisdiction in declaring the property to be Escheat, directing the Government to take possession thereof, and adjudicating upon an issue that was never raised by the parties. At the most, if the Court was of the opinion that neither party had established title and the property may belong to the Government, it could only have observed that the parties failed to prove title or claim over the suit property, and left the matter open for the Government to proceed independently in accordance with law.

7. For the reasons stated above, these petitions are converted into appeals and partially allowed to the extent that the impugned observations declaring the suit property as Escheat property and directing the Government to take its possession thereof are set aside. The dismissal of the suit on the ground that neither party succeeded in proving the title or claim shall, however, remain intact, leaving the matter open for the Government to proceed independently in accordance with law. No order as to costs.

Civil Petition No. 3232/2023

Learned counsel submits that, since the main judgment of the High Court has already been assailed before this Court through Civil Petition No. 3287 of 2023, the instant petition, being directed against the review order, has become redundant. He, therefore, seeks to withdraw the same. Order accordingly.

Islamabad, the
15th January, 2026
Zia/ *

"Approved for reporting"